BRENDAN NGEHSI NEWANFORBI
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
Email: bnn.cdl@gmail.com
Plaintiff, In Propria Persona

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. FEDERAL EXPRESS CORPORATION, and DOES 1 through 10, inclusive, Defendants.	Case No. 2:26-cv-02881-DAD-SCR **PLAINTIFF'S FIRST SET OF REQUESTS FOR PRODUCTION OF DOCUMENTS TO DEFENDANT FEDERAL EXPRESS CORPORATION** Set No.: One Propounding Party: Plaintiff Responding Party: Defendant Federal Express Corporation Magistrate Judge: Hon. Sean C. Riordan District Judge: Hon. Dale A. Drozd

TO DEFENDANT FEDERAL EXPRESS CORPORATION AND ITS ATTORNEY OF RECORD:

Under Federal Rules of Civil Procedure 26 and 34, Plaintiff Brendan Ngehsi Newanforbi requests that Defendant Federal Express Corporation serve a written response within thirty (30) days after service (plus three days if service is by mail under Rule 6(d)), and produce the documents requested below at that time or by another reasonable date stated in the response.

Place and manner of production: by delivery of copies to Plaintiff at 1455 Cat Tail Drive, Stockton, California 95204, or by secure electronic delivery to bnn.cdl@gmail.com.

INSTRUCTIONS

1. Produce documents in Your possession, custody, or control, including documents held by Your affiliates, agents, and vendors (including First Advantage) that You have the legal right or practical ability to obtain.

2. Produce electronically stored information as searchable PDF, except that spreadsheets, audit logs, and applicant-tracking-system data should be produced in native or other reasonably usable form with metadata showing dates and authors (Rule 34(b)(1)(C), (b)(2)(E)).

3. Organize and label documents to correspond to the requests, or produce them as kept in the usual course of business (Rule 34(b)(2)(E)(i)). Bates-number each page.

4. For each request, state whether responsive documents are being withheld on the basis of any objection (Rule 34(b)(2)(C)). For any document withheld as privileged, provide the information required by Rule 26(b)(5)(A) at the time of production.

5. If a responsive document no longer exists, identify it and explain the circumstances of its loss or destruction.

6. The Definitions in Plaintiff's First Set of Interrogatories, served with these requests, apply here and are restated below.

DEFINITIONS

1. **"FedEx," "Defendant," "You," and "Your"** mean Defendant Federal Express Corporation and, to the extent it acted for or with Federal Express Corporation in connection with Plaintiff's applications, background screening, or hiring decisions, any parent, subsidiary, or affiliate (including FedEx Ground Package System, Inc. and any unit identified as "FEDEX GROUND HR"), and their officers, employees, agents, and vendors.

2. **"Plaintiff"** means Brendan Ngehsi Newanforbi, including under any variation of that name (for example, Brendan Ngwa Nforbi, Brendan Ngwanforbi, or Ngwa-Nforbi).

3. **"First Advantage"** means First Advantage Background Services Corp. and any affiliate that prepared or furnished a background report about Plaintiff to FedEx.

4. **"Report"** means every consumer report, investigative consumer report, background report, and update or version of one, concerning Plaintiff that First Advantage or any other

consumer reporting agency furnished to FedEx, including the report FedEx admits (Answer, ECF No. 4, ¶¶ 17, 20, 34) was provided to it on or before March 10, 2025.

5. **"Adverse Action"** means FedEx's decision to deny Plaintiff employment, and to withdraw any conditional offer of employment, in or about March 2025, including the adverse-action notice dated on or about March 19, 2025.

6. **"Registry Information"** means any information identifying Plaintiff as a registered sex offender, from any source, including the California Department of Justice Megan's Law website (Cal. Penal Code § 290.46), the National Sex Offender Public Website (NSOPW), any state registry, or any database compiled from them.

7. **"Prior Employment"** means each period, before January 2025, in which FedEx hired or employed Plaintiff, and each application Plaintiff submitted to FedEx before January 2025.

8. **"Document"** and **"communication"** have the broadest meaning allowed by Fed. R. Civ. P. 34(a)(1)(A), and include electronically stored information such as email, chat and instant messages, applicant-tracking-system records (including Paradox), portal records, notes, and audit logs.

9. **"Identify,"** for a person, means full name, job title, employer, and last known business address; for a document, its date, author, recipients, type, and Bates number if produced.

10. Unless otherwise stated, the relevant period is **January 1, 2024 through the present**, except that requests about Prior Employment cover any time.

DOCUMENTS REQUESTED

REQUEST FOR PRODUCTION NO. 1:
All documents concerning each application Plaintiff submitted to You at any time, including the application reflected in the July 17, 2024 confirmation from fedex@paradox.ai and the application You describe as submitted in January 2025, together with all forms Plaintiff completed, including the forms dated on or about January 8, 2025.

REQUEST FOR PRODUCTION NO. 2:
Plaintiff's complete personnel, onboarding, and separation files for each period of Prior Employment.

REQUEST FOR PRODUCTION NO. 3:

Each Report, in every version and in the form furnished to You, including all attachments, component results, and updates.

REQUEST FOR PRODUCTION NO. 4:
All communications between You and First Advantage concerning Plaintiff, including portal messages, emails, adjudication notes, and status updates.

REQUEST FOR PRODUCTION NO. 5:
All documents reflecting the adjudication, scoring, or eligibility determination applied to each Report, including any "client criteria," eligibility matrix, or adjudication guideline used.

REQUEST FOR PRODUCTION NO. 6:
Each conditional offer of employment, offer letter, or offer communication extended to Plaintiff at any time.

REQUEST FOR PRODUCTION NO. 7:
Each pre-adverse action notice and adverse-action notice sent to Plaintiff at any time, with all enclosures, in the form sent, and documents showing the dates and method of delivery.

REQUEST FOR PRODUCTION NO. 8:
All documents You relied on, reviewed, or considered in taking the Adverse Action.

REQUEST FOR PRODUCTION NO. 9:
All internal communications (including email, chat, and instant messages) concerning Plaintiff's 2025 application, the Report, or the Adverse Action.

REQUEST FOR PRODUCTION NO. 10:
All documents supporting Your contention that Plaintiff's application "contained material misrepresentations that independently justified the hiring decision" (ECF No. 10 at 2).

REQUEST FOR PRODUCTION NO. 11:
All documents supporting Your Eighth Affirmative Defense (use of information to protect a person at risk).

REQUEST FOR PRODUCTION NO. 12:
All policies, procedures, guidelines, and training materials in effect at any time from January 1, 2024 through March 31, 2025 concerning the use of criminal history or Registry Information in hiring decisions for positions in California.

REQUEST FOR PRODUCTION NO. 13:
All policies, procedures, guidelines, and training materials in effect at any time from January 1, 2024 through March 31, 2025 that refer to California Penal Code section 290.46 or the Megan's Law website.

REQUEST FOR PRODUCTION NO. 14:
The portions of each agreement, statement of work, or package configuration between You and First Advantage in effect during 2024 or 2025 that govern the searches ordered for California applicants, any sex offender registry search, or compliance with California law.

REQUEST FOR PRODUCTION NO. 15:
The job posting, job description, and documents sufficient to show the duties of each position for which Plaintiff applied or was considered in 2024 or 2025.

REQUEST FOR PRODUCTION NO. 16:
Documents sufficient to show the hourly wage, expected hours, and benefits of the position for which Plaintiff was considered in 2025.

REQUEST FOR PRODUCTION NO. 17:
All applicant-tracking-system records concerning Plaintiff (including Paradox and any successor or related system), including status histories, notes, and audit logs.

REQUEST FOR PRODUCTION NO. 18:
All disclosure and authorization forms concerning background reports that Plaintiff signed or acknowledged at any time, and all documents showing whether Plaintiff requested a copy of any Report.

REQUEST FOR PRODUCTION NO. 19:
Documents sufficient to show the date and time You received each Report.

REQUEST FOR PRODUCTION NO. 20:
All documents concerning any background check performed on Plaintiff in connection with any period of Prior Employment.

REQUEST FOR PRODUCTION NO. 21:
All documents identified, referred to, or relied on in Your answers to Plaintiff's First Set of Interrogatories.

REQUEST FOR PRODUCTION NO. 22:

All written or recorded statements of any witness concerning the facts of this action.

REQUEST FOR PRODUCTION NO. 23:

All documents You obtain from any third party, by subpoena or otherwise, concerning Plaintiff or this action.

Dated: September 25, 2026

_____

BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Propria Persona

PROOF OF SERVICE

I am the Plaintiff in this action, over the age of eighteen. My address is 1455 Cat Tail Drive, Stockton, California 95204. On the date below I served the following document(s):

1. Plaintiff's First Set of Requests for Production of Documents to Defendant Federal Express Corporation

on the person below, by the method checked:

☐ **U.S. Mail** (Fed. R. Civ. P. 5(b)(2)(C)): by placing a true copy in a sealed envelope, first-class postage fully prepaid, deposited with the United States Postal Service at _____, California, addressed as below.

☐ **Email** (Fed. R. Civ. P. 5(b)(2)(E)): by transmitting a PDF copy to the email address below. Counsel consented in writing to email service on _____ (date).

Allison A. Kray, Esq.
Federal Express Corporation
2601 Main Street, Suite 1100
Irvine, California 92614
allison.kray@fedex.com
Attorney for Defendant Federal Express Corporation

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct. Executed on _____, 2026, at _____, California.

_____
BRENDAN NGEHSI NEWANFORBI